

23BBCV02069 23BBCV02069

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-08-14

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=BUR%2CB%2C08%2F14%2F2026

Source SHA-256: 827e784323e46dcc7f176e8bcd9b3fa7194ae934f9079a9b120ef86e4c9b77b8

Case Number: 23BBCV02069 Hearing Date: August 14, 2026 Dept: B

Hon. Victor Avila, Dept B

Motion for Issue/ Monetary Sanctions

Hearing Date: 8/14/26

CASE NO./NAME: 23BBCV02069/ Tutkhalyan

v. Los Angeles Metro. Transportation Authority, et al.

Moving Party: Plaintiff Karen Tutkhalyan

Responding Party: Defendant Los Angeles

Metro. Transportation Authority

Notice: Sufficient

Ruling: GRANTED

NOTICE

The Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and ANY PARTY SEEKING ARGUMENT

SHOULD NOTIFY ALL OTHER PARTIES AND THE COURT BY 4:00 P.M. ON THE COURT DAY

BEFORE THE HEARING of the party's intention to argue as to this

matter/motion. The tentative ruling will

become the ruling of the court if no argument is received. Notice may be given either by email at or by telephone at (818) 260-8422.

Parties must appear on all other matters scheduled for this case.

BACKGROUND

This case arises from a January 9, 2023, incident in which plaintiff Karen Tutkhalyan (Plaintiff), a passenger on a Los Angeles County Metropolitan Transportation Authority bus, alleges that the bus driver accelerated abruptly before Plaintiff had an opportunity to sit or stabilize himself, causing him to fall and suffer significant injuries. The complaint, filed September 8, 2023, alleges causes of action for negligence and strict liability against Defendant Los Angeles Metropolitan Transportation Authority (Defendant).

On

July 31, 2026, the Court denied Defendant's motion seeking reconsideration of the Court's June 12, 2026, Order granting Plaintiff's motion to compel deposition.

On July 21, 2026, Plaintiff filed the instant motion seeking imposition of sanctions against Defendant for failure to comply with the June 12, 2026, Order. On August 3, 2026, Defendant filed an opposition. On August 6, 2026, Plaintiff filed a reply.

REQUEST

FOR JUDICIAL NOTICE

Plaintiff requests judicial notice of Exhibits: (1) Plaintiff's Notice of Renewed Motion and Renewed Motion to Compel Further Deposition Answers of Defendant LACMTA's Person Most Qualified and Request for Monetary Sanctions; (2) November 21, 2025, Minute Order; (3) June 12, 2026, Minute Order; (4) July 31, 2026, ruling and Minute Order. The request is granted. (Evid. Code, § 452(d).)

LEGAL

STANDARD

Under Code of Civil Procedure section 2031.300, "[i]f a party ... then fails to obey the

order compelling

a response, the court may make those orders that are just, including the

imposition of an

issue sanction, an evidence sanction, or a terminating sanction under Chapter 7

(commencing with

Section 2023.010). In lieu of or in addition to that sanction, the court may

impose a

monetary sanction under Chapter 7 (commencing with Section 2023.010)." (Code Civ.

Proc., §

2030.290, subd. (c).)

The "court, after notice to any affected party, person, or attorney, and after an opportunity

for hearing, may

impose" monetary, issue, evidence, or terminating sanctions "against anyone

engaging in

conduct that is a misuse of the discovery process[.]" (Code Civ. Proc., §§ 2023.030;

2023.030,

subds.(a)-(d).) Failing to respond or submit to an authorized method of discovery and

disobeying a

court order to provide discovery are misuses of the discovery process. (Code Civ.

Proc., §

2023.010, subds. (d) and (g).)

"The trial court has broad discretion in selecting discovery sanctions, subject to reversal

only for abuse. The trial court should consider both the conduct being sanctioned and its effect on the party seeking discovery and, in choosing a sanction, should 'attempt to tailor the sanction to the harm caused by the withheld discovery.'" (Doppesv. Bentley Motors, Inc. (2009) 174 Cal.App.4th967, 992.)

DISCUSSION

Plaintiff

seeks imposition of sanctions against Defendant for their failure to comply with the Court's June 12, 2026, Order. Plaintiff seeks issue and monetary sanctions as well as an order compelling Defendant to produce, within 30 days, a Person Most Qualified (PMQ) to give testimony as required by the June 12, 2026, Order. (Mot., p. 2.) Although the request is made, Plaintiff does not substantively move to compel further deposition of Defendant's PMQ, Plaintiff may file a motion to compel further if they so wish.

Issue

Sanctions

Plaintiff moves

the Court to order Defendant be precluded from presenting any evidence as to the following issues, and consider them established:

(1) that

Metro's operator training and written safety policies and procedures required a bus operator to wait until a boarding passenger had a reasonable opportunity to be seated or to secure himself before accelerating the bus; and

(2) that

accelerating the bus before a boarding passenger had a reasonable opportunity to be seated or secured departed from Metro's operator training and safety standards.

Plaintiff argues that these issue

sanctions correspond directly to the subject matter Metro put squarely in dispute and subsequently withheld by failing to provide a sufficient PMQ. (Mot., pp. 6-7.) Plaintiff argues that Defendant failed to provide a competent PMK at the deposition following the Court's June 12, 2026, Order instructing Defendant to allow Plaintiff to further depose their PMK Ms. Bertrand. (Mot.,

p. 5.) Plaintiff argues that Ms. Bertrand could not fully answer a single question for all ordered categories and was not prepared by Defendant to answer at all, in violation of the Court order. (Ibid.) For this reason, Plaintiff argues Defendant's conduct was a willful attempt to circumvent Court order and not answer a single question. (Mot., pp. 5-6.)

In opposition, Defendant argues that they have complied with the Court's June 12, 2026, Order by producing their PMK, Ms. Bertrand, on July 1 for further deposition. (Opp., p. 3.) Defendant argues that the Order only prevented Defendant from directing the PMK not to answer questions of certain categories, Defendant argues that they complied with those obligations. (Ibid.) Further, Defendant argues that their PMK answered all questions asked of her and provided substantive responses. (Opp., p. 4.) Defendant argues that this is not noncompliance and does not justify issue sanctions. (Ibid.)

In reply, Plaintiff argues that the June 12, 2026, Order commanded Defendant's witness to "fully answer" which Defendant's PMK, Ms. Bertrand did not do. (Reply, p. 3.) Plaintiff argues that Defendant's PMK, Ms. Bertrand, answered multiple questions by saying she didn't know, or could not answer, which is not full compliance pursuant to the June 12, 2026, Order. (Reply, p. 6.) Further, Plaintiff argues that Defendant provided a PMK who was not "designated" for a number of categories discussed during the deposition, in order to avoid answering the questions. (Reply, p. 7.)

Here, the June 12 Order instructs Defendant's PMK, Ms. Bertrand, "to fully answer all questions on categories 5, 7, 8, 9, 10, and 19 without instructions not to answer, ..." (See 6/12/26 Minute Order, p. 5.) The parties do not seem to dispute that Defendant did not explicitly instruct their PMK not to answer any questions at the July 1, 2026, deposition. (Tashjian Decl., ¶ 3; Exh. B, pp. 60-92; Ashour Decl., ¶ 5.) However, the parties do dispute whether Ms. Bertrand fully answered the questions in compliance with the June 12 Order.

Here, Ms. Bertrand did not fully answer questions in compliance with the June 12 Order. The transcripts of the deposition reflect Ms. Bertrand stating that she is not the PMK in several categories the Court instructed further deposition on and does not provide revealing or substantive answers. (Tashjian Decl., Exh. B, pp. 74-76.) As stated prior, the Court instructed Defendant to have Ms. Bertrand "fully answer all questions on

categories 5, 7, 8, 9, 10, and 19.” (6/12/26 Minute Order, p. 5.) “If the particular officer or employee designated lacks personal knowledge of all the information sought, he or she is supposed to find out from those who do.” (Maldonado v. Superior Court (2002) 94 Cal.App.4th 1390, 1395–1396.) Further, Ms. Bertrand admits that Defendant and herself did not prepare prior to the deposition to fully answer questions in these categories. (Tashjian Decl., Exh. B, pp. 76.) Thus, Defendant's witness did not fully answer questions in the identified categories and is in noncompliance with the Court's June 12, 2026, Order.

Accordingly, issue sanctions are GRANTED in the categories below:

(1) that

Metro's operator training and written safety policies and procedures required a bus operator to wait until a boarding passenger had a reasonable opportunity to be seated or to secure himself before accelerating the bus; and

(2) that

accelerating the bus before a boarding passenger had a reasonable opportunity to be seated or secured departed from Metro's operator training and safety standards.

Monetary

Sanctions

In addition to or in lieu of any other sanction, the court may order the disobedient party or counsel responsible or both to pay the reasonable expenses, including attorney fees, incurred as a result of the failure to obey (including fees on the sanctions motion). (Code Civ. Proc. § 2023.030, subd. (a).)

Plaintiff seeks sanctions in the amount of \$9,375 for 12.5 hours of work at a rate of \$750.00 per hour. (Mot., p. 7; Tashjian Decl., ¶ 6.) Plaintiff's counsel declares spending 8.5 hours reviewing the July 1 deposition, researching and preparing this motion and declaration; anticipated spending 3 hours reviewing Defendant's opposition and preparing a reply; and 1 hour for the hearing, for a total of 12.5 hours. (Tashjian Decl., ¶ 6.)

Here, the Court will slightly reduce the requested fees to 8 hours reviewing the deposition, researching and preparing the instant motion, 3 hours reviewing the opposition and drafting a reply and 1 hour for hearing appearance. This brings total attorney fees to \$9,000.

Accordingly, the motion for issue and monetary sanctions is GRANTED.

CONCLUSION
AND ORDER

Plaintiff's motion for issue sanctions is GRANTED.

Plaintiff's motion for monetary sanctions is GRANTED in the amount of \$9,000 payable by Defendant within 15 days from this ruling.

MOVING PARTY is to give notice and provide a proposed order consistent with this ruling within 15 days from this date.